

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HECTOR RENE ARRIAZA HERNANDEZ,

Petitioner

VS.

EGLYS GREYS QUICH VASQUEZ,

Respondent

) Case Number: FDI-24-800583

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: MARTIN TRIANO

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, ATTORNEY'S FEES AND COST,
ORDER FOR SHORTENING TIME ON HEARING AND SERVICE; ORDER FOR BIFURCATION
AND ENTRY OF STATUS ONLY JUDGEMENT

TENTATIVE RULING

Given the active restraining order, the parties are ordered to appear to discuss the payment method for spousal support by Husband to Wife.

The parties are ordered to appear on 9/24/2026 at 9am in Department 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Hector Hernandez (Husband) and Respondent Eglys Vasquez (Wife) married on 8/12/2012. The parties agree they separated in June 2024, for a marriage of approximately 11 years. The parties have two adult daughters.
- 2) On 10/16/2024 in related Case No. FDV-24-817874, the Court entered a 3-Year Domestic Violence Restraining Order After Hearing protecting Wife against Husband.
- 3) On for hearing is Wife's Request for Order filed 7/29/2026 asking the Court to award her temporary spousal support, to bifurcate and terminate the parties' marital status, and to award her

1 \$7,500 in need based attorney's fees and costs. Wife states that she is disabled from a car accident
2 from which she lost a leg. Wife states she cannot stand without experiencing excruciating pain in
3 her lower back, hip, and leg. Wife states that she is unable to work, and her last employment was
4 18 years ago when she worked as a Food Preparer at McDonald's. Wife also states that she has
5 cancer and is terminally ill. Wife states that her doctors estimate she only has a few months left to
6 live. Wife states she currently receives \$290 per month for CalFresh and \$1,200 per month for
7 Social Security, but her monthly expenses (\$2,830) exceed her income. Wife states that during
8 their marriage, Husband worked at a fruit stand and he would make \$6,000 per month. Wife
9 states that she knew this because she would cut the fruit and sell it with him for a period of 8 – 9
10 years. Wife further states that Husband was abusive to her throughout their marriage.

11 4) On 5/27/2026, Wife filed an Income and Expense Declaration. Wife states she is 48 years old and
12 the highest grade she has completed is 5th grade. Wife states that she was last employed by
13 McDonald's in 2008. Wife states that she earns \$290 per month for food stamps and \$1,200 per
14 month for disability. Wife reports no assets. Wife states that her average monthly expenses total
15 \$1,559.

16 5) On 9/9/2026, Husband filed a Responsive Declaration. Husband states he agrees to pay Wife
17 \$200 per month in support and agrees to an order bifurcating and terminating their marital status.
18 Husband does not agree to pay Wife's attorney's fees. Husband states that he and Wife shared a
19 fruit selling business for 10 years, but when the restraining order was entered in 2024, he left the
20 business to her for her own support. Husband states that he currently sells cheese in the parking
21 lots of flea markets in Oakland. He buys cheese for \$10 for a two pound package and sells it for
22 \$15 per package. Husband states that his bank records for 2026 to date show average monthly
23 deposits of \$3,015 per month and withdrawals of \$3,166 per month. Husband states that many of
24 his sales are paid in Zelle deposits and cash payments and are put in the bank or used to purchase
25 cheese. Husband states his net income from work is \$2,500 per month. Husband states that his
26 current bank balance is \$288.

27 6) On 9/9/2026, Husband filed an Income and Expense Declaration. Husband states he is 52 years
28 old and completed 6th grade. Husband states he works 60 hours per week. Husband states he earns
29 on average \$2,500 per month in self-employment income as an itinerant food vendor. Husband

1 states the owns \$5,000 in personal property (car and business equipment). Husband states his
2 monthly expenses total \$2,500. Husband owes \$3,900 in debt.

3 **B. Findings and Order**

- 4 1) In accordance with the XSpouse calculation attached hereto, the Court finds that guideline
5 spousal support would amount to \$217 per month, payable by Husband. The Court finds good
6 cause to grant Husband's offer to pay \$200 per month in spousal support. Commencing
7 10/1/2026, Husband shall pay to Wife \$200 per month for temporary spousal support by the 5th of
8 each month.
- 9 2) The Court does not find that Husband has the ability to make any contribution to Wife's
10 attorney's fees. Therefore, Wife's request for a need-based attorney's fee award is denied.
- 11 3) Regarding Wife's request to bifurcate and terminate the parties' marital status, the Court finds:
- 12 a. Husband filed a Petition requesting dissolution of marriage 11/21/2024, citing
13 irreconcilable differences.
- 14 b. Wife filed a Response on 1/15/2025 also requesting dissolution of marriage and citing
15 irreconcilable differences.
- 16 c. Under Family Code section 2339(a), the Court first acquired jurisdiction over Wife when
17 Wife filed her Response to the Petition.
- 18 d. Within the Petition and Response, both parties indicate that at least one party was a
19 resident of California for at least six months and of San Francisco County for at least
20 three months immediately preceding the filing of the Petition.
- 21 e. On 5/27/2026, Wife filed a Declaration Regarding Service of Declaration of Disclosure
22 indicating that she mailed her Preliminary Declaration of Disclosure to Husband on
23 5/27/2026.
- 24 f. Wife has stated under penalty of perjury that there are no pension or retirement plans in
25 which the community has an interest.
- 26 4) Based on the foregoing, Wife's request to bifurcate and terminate the parties' marital status is
27 GRANTED with the protections set forth below. Each party is restored to their previous single
28 status as of 9/24/2026. The Court finds this termination date meets the requirement set forth in
29 Family Code section 2339(a).

1 5) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
2 the protections of Family Code section 2337(c)(1) and (3)-(6) shall apply against Wife until
3 judgment is entered and becomes final on all remaining issues.

4 6) The parties are reminded that despite the termination of their marital status, the Standard Family
5 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
6 Code section 233(a).

7 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved
8 under Family Code section 2337(f).

9 8) The Court will prepare the Findings and Order After Hearing as well as the Status Only Judgment
10 and Notice of Entry of Judgment.

11 9) **Given the active restraining order, the parties are ordered to appear to discuss the payment**
12 **method for spousal support by Husband to Wife.**

Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	3244	3244
Filing status	SINGLE	SINGLE	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	1 *	Nets(adjusted)	Husband		
Wages+salary	0	0	Husband	2044		
Self-employed income	2500	0	Wife	1200		
Other taxable income	0	0	Total	3244		
TANF+CS received	0	0	Support			
Other nontaxable income	0	1200	Addons	0		
New spouse income	0	0	Guideln CS	0		
401(k) employee contrib	0	0	S.Clara SS	217		
Adjustments to income	0	0	Total	217		
SS paid prev marriage	0	0	CS range: 0-0			
CS paid prev marriage	0	0				
Health insurance	0	0		Wife		
Other medical expense	0	0				
Property tax expense	0	0				
Ded interest expense	0	0	Proposed			
Charitable contributions	0	0	Tactic 9			
Misc tax deductions	0	0	CS	0		
Qual bus income ded	0	0	SS	217		
Required union dues	0	0	Total	217		
Mandatory retirement	0	0				
Hardship deduction	0 *	0 *	Saving	0		
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Husband pays Guideline SS, Proposed SS

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BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☐ petitioner ☒ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 9/24/2026

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Type of order attached		
3a(1)	3a(2)	3a(3)
☐	☐	☐
☐	☐	☐
☐	☐	☐

☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

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5. b. ☐ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☐ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☐ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached:

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.